California bill requires social media companies to consider mental health of minors

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California lawmakers have passed a bill requiring social media companies to take into consideration the mental health of minors who use their platforms.

The California Age-Appropriate Design Code Act passed through the state legislature by a 75-0 vote on Tuesday.

The act has now been sent to Gov. Gavin Newsom's desk, but Newsom, a Democrat, hasn't commented publicly on it and it's not clear if he will sign it into law.

If passed, the bill would require companies to file a data protection impact assessment if an online service, product, or feature is likely to be accessed by children, as defined.

Californians are becoming increasingly alarmed about the role of social media in promoting hate, disinformation, conspiracy theories, and extreme political polarization, Assembly member Jesse Gabriel, one of the bill's authors said in a statement.

It would also toughen age verification procedures, putting the onus on companies to ensure a person is truthful about their age.

The bill would require online platforms likely to be accessed by children to turn privacy and safety settings up to a level that is protective of children's mental and physical health and well-being unless the online platform can, with an appropriate level of certainty, determine the age of the consumer, the bill's analysis reads.

Violators would be fined $2,500 per child for each infraction, and more than $7,500 per affected child for each intentional violation.

It's long past time for tech companies to provide real transparency into how they are shaping our public discourse. The public and policymakers deserve to know when social media companies are amplifying certain voices and silencing others. This is an important step in a broader effort to protect our vulnerable communities and hold Big Tech accountable.

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